

CHAPTER - 5

LANDMARK JUDGMENT

Here are the most important case laws in Indian Legal History. These all cases are important for upcoming CLAT 2022 exam.

1. Jury decision overturned by High Court (KM Nanavati v State of Maharashtra) - 1961

This case is notable for being the last case when a jury trial was held in India. KM Nanavati, a naval officer, murdered his wife's lover, Prem Ahuja. The jury ruled in favour of Nanavati and declared him "not guilty" which was eventually set aside by the Bombay High Court.

2. Amendment masquerades as law (IC Golaknath v State of Punjab) - 1967

Parliament's prevented from taking away individual rights.

In the highly famous case of Golaknath V State of Punjab in 1967 the Supreme Court ruled that Parliament could not curtail any of the Fundamental Rights of individuals mentioned in the Constitution. Parliament's overarching ambitions nipped in the bud (Keshavananda Bharti vs State of Kerala) 1973.

3. Elected representatives cannot be given the benefit of doubt.

A highly notable case which introduced the concept of "basic structure" of the constitution of India and declared that those points decided as basic structure could not be amended by the Parliament. The case was triggered by the 42nd Amendment Act.

4. (Indira Gandhi v Raj Narain) - 1975

The trigger that led to the imposition of emergency.

In this landmark case regarding election disputes, the primary issue was the validity of clause 4 of the 39th Amendment Act. The Supreme Court held clause 4 as unconstitutional and void on the ground that it was outright denial of the right to equality enshrined in Article 14. The Supreme Court also added the following features as "basic features" laid down in Keshavananda Bharti case

– democracy, judicial review, rule of law and jurisdiction of Supreme Court under Article 32.

5. A step backward for India (ADM Jabalpur v Shivakant Shukla Case) - 1976

Widely considered a violation of Fundamental Rights.

In this landmark judgment, the Supreme Court declared that the rights of citizens to move the court for violation of Articles 14, 21 and 22 would remain suspended during emergencies. Triumph of individual liberty (Maneka Gandhi vs UOI) 1978.

6. Parliament limited by itself (Minerva Mills v Union of India) - 1980

In this landmark judgment, the Supreme Court of India in 1980 strengthened the doctrine of the basic structure which was propounded earlier in the Keshavananda Bharti Case. Two changes which were made earlier by the 42nd Amendment Act were declared as null and void by the Supreme Court in this particular case.

7. Constitutional validity of individual rights upheld (Waman Rao v Union of India) - 1981

SC ruled that Parliament had transgressed its power of constitutional amendment.

This case was a landmark decision in the constitutional jurisprudence of India. This case has helped in determining a satisfactory method of addressing grievances pertaining to the violation of fundamental rights by creating a fine line of determination between the Acts prior to and after the Keshavananda Bharati case.

8. Maintenance lawsuit sets precedent (Mohd Ahmed Khan v Shah Bano Begum) - 1985

Muslim woman Shah Bano won the right to get alimony from her husband.

The petitioner challenged the Muslim personal law. The Supreme Court ruled in favour of Shah Bano and granted her alimony. Most favoured it as

a secular judgment but it also invoked a strong reaction from the Muslim community, which felt that the judgment was an encroachment on Muslim Sharia law and hence led to the formation of the All India Muslim Personal Law Board in 1973.

9. MC Mehta v Union Of India - 1986

Mounting environment-related concerns.

A PIL filed by MC Mehta in 1986 enlarged the scope and ambit of Article 21 and Article 32 to include the right to healthy and pollution-free environment.

10. Reservation in central government jobs (Indra Sawhney v UOI November) - 1992

Attempt to correct historic injustices constitutionally.

The constitutional bench of the Supreme Court held in this matter that caste could be a factor for identifying backward classes.

11. Wrangle over Supreme Court judge appointments (Supreme Court Advocates-on-Record - Association and another versus Union of India) - 1993

The National Judicial Appointments Commission Act and Constitutional amendment Act passed in 2014 aimed at replacing the collegium system of appointing Supreme Court judges. The act was struck down as unconstitutional by the Supreme Court in October 2015.

12. Power of President's Rule curtailed (SR Bommai v Union of India) - 1994

Persecution of state governments stalled.

This landmark case had major implications on Centre-State relations. Post this case the Supreme Court clearly detailed the limitations within which Article 356 has to function.

13. Foundation for a female workforce (Vishaka v State of Rajasthan) - 1997

Definition of sexual harassment and guidelines to deal with it laid down.

In this case Vishakha and other women groups filed a Public Interest Litigation (PIL) against State of Rajasthan and Union of India to enforce

fundamental rights for working women under Articles 14, 19 and 21 of the Constitution. This resulted in the introduction of Vishaka Guidelines. The judgment of August 1997 also provided basic definitions of sexual harassment at the workplace and provided guidelines to deal with it. Hence the importance of the case as a landmark judgment.

14. Afzal Guru's death sentence sparked protests - 2002

Shaukat Hussain Guru vs . State (NCT) Delhi and Ors.

Awarded death sentence for role in 2001 Parliament attacks.

Afzal Guru was sentenced to death on February 2013 for his role in the December 2001 attacks on the Indian Parliament. The judgment faced widespread criticism on three grounds – lack of proper defense, lack of primary evidence and judgment based on collective conscience rather than rule of law.

15. State of Tamil Nadu V Suhas Katti - November 2004

Short conviction time of seven months.

This was notable for being the first case involving conviction under the Information Technology Act, 2000. A family friend of a divorced woman was accused of posting her number online on messenger groups which led to her being harassed by multiple lewd messages. The accused was later convicted and sentenced.

16. Rameshwar Prasad v Union Of India - 2005

Dissolution of Bihar Assembly unwarranted.

In this case, the petitioner challenged the constitutional validity of a notification which ordered dissolution of the legislative Assembly of the state of Bihar. The dissolution had been ordered on the ground that attempts were being made to cobble a majority by illegal means and lay claim to form the government in the state which if continued would lead to tampering with constitutional provisions. The Supreme Court held that the aforementioned notification was unconstitutional.

17. Victims of sexual assault or not? (Om Prakash v Dil Bahar) - 2006

Controversial ruling had many opponents.

The Supreme Court in the above case declared that a rape accused could be convicted on the sole evidence of the victim in spite of medical evidence not proving that it was rape.

18. Jessica Lal Murder Case - December 2006

Sidhartha Vashisht v s. State (NCT of Delhi)

Civil society makes big gains.

A model in New Delhi working as a bartender was shot dead and the prime accused Manu Sharma, son of Congress MP Vinod Sharma who was initially acquitted in February 2006 was later sentenced to life imprisonment in December 2006 by a fast track hearing by the Delhi High Court. On 19 April 2010, the Supreme Court of India approved the sentence.

19. Sanjay Dutt plays prisoner in real life

Sanjay Dutt vs State through C.B.I 1994

Conviction under TADA changed under milder Arms Act.

Well-known actor Sanjay Dutt was sentenced to five year imprisonment by the Supreme Court for illegal weapons possession in a case linked to the 1993 serial blasts in Mumbai. The Supreme Court also cited that the circumstances and nature of offence were too serious for the 53-year-old actor to be released on probation.

20. Nithari serial murders . Appeal turned down by supreme court

Surendra Koli vs State of U.P

Koli was served with multiple death sentences.

A Special Sessions Court awarded death sentence in 2009 to Surinder Koli and Moninder Singh Pandher for the murder of a 14-year-old girl. The murders believed to have been committed through 2006 involved instances of cannibalism. Pandher was later acquitted by the Allahabad High Court and was released on bail but Koli's death sentence was upheld by both the High Court as well as the Supreme Court.

21. Aarushi Talwar murder – 2008

Rajesh Talwar vs. Central Bureau of Investigation and Ors.

Verdict delivered under unusual circumstances.

A case which received heavy media attention involved the double murder of 14-year-old Aarushi Talwar and her 45-year-old domestic help in Noida. After five years a Sessions court convicted both her parents Rajesh and Nupur Talwar and sentenced them to life imprisonment.

22. Section 377 case (Naz Foundation v Govt of NCT of Delhi) - July 2009

Cause for rejoicing for homosexuals.

In 2009 the Supreme Court declared Section 377 of the Indian Penal Code, 1860 as unconstitutional. The said section earlier criminalised sexual activities "against the order of nature" which included homosexual acts. This judgment however, was overturned by the Supreme in December, 2013.

23. Meagre closure for controversial Ayodhya (Ayodhya Ram Mandir Babri Masjid Case) - September 2010

Ruled that the land was to be divided into three parts.

The high court of Allahabad had ruled that the disputed land in Ayodhya where the Babri Masjid was situated before it was demolished in 1992 shall be divided into three parts. Two-thirds of the land was to be awarded to the Hindu plaintiffs and one-third to the Sunni muslim Waqf board.

24. Vodafone's name cleared in tax battle (Vodafone-Hutchison tax case) - January 2012

Vodafone International Holdings B.V. vs. Union of India (UOI)

Landmark decision on taxability of offshore transactions.

The Supreme Court ruled in favour of Vodafone in the two-billion-dollar tax case citing that capital gains tax is not applicable to the telecom major. The apex court also said that the Rs 2,500 crore which Vodafone had already paid should be returned with interest.

25. Clean chit to Prime Minister Narendra Modi - 2012

Questions remains and victims of families yet to get closure.

In April 2012 the Supreme Court appointed Special investigation Team (SIT) gave current Prime Minister Narendra Modi a clean chit in the post-Godhra Gulberg massacre case citing that it found no evidence against him. Narendra Modi went on to become the Prime Minister of India with a huge mandate.

26. Mohd Ajmal Amir Kasab v State of Maharashtra - 2012

One of the most high-profile executions in the country.

The Supreme Court observed that the acts on November 26, 2008, had shaken the collective conscience of Indian citizens and had confirmed the death sentence awarded to prime accused Ajmal Kasab by the trial court and affirmed by the Bombay High Court, for waging war against India.

27. NOTA Judgment - 2013

People's Union for Civil Liberties and Ors. Vs. Union of India (UOI) and Ors.

The right to reject candidates formalised.

In 2013, the Supreme Court introduced negative voting as an option for the country's electorate. According to this judgment an individual would have the option of not voting for any candidate (None-Of-The-Above) if they don't find any of the candidates worthy.

28. Patent troubles of Pharma company Novartis (Novartis v Union of India & Others) - 2013

Case accused of dealing a death blow to innovation in medicine.

Novartis' application which covered a beta crystalline form of imatinib, a medicine the company brands as "Glivec", which is very effective against chronic myeloid leukaemia (a common form of cancer) was denied patent protection by the Intellectual Property Appellate Board. The Supreme Court in its ruling upheld the board's decision which eventually led to the medicine being made available to the general public at a much lower cost.

29. Illegalising convicted MPs and MLAs (Lily Thomas v Union Of India) - July 2013

Effected much-needed cleansing of legislative bodies.

The Supreme Court of India, in this judgment, ruled that any member of Parliament (MP), member of the legislative assembly (MLA) or member of a legislative council (MLC) who was convicted of a crime and awarded a minimum of two-year imprisonment, would lose membership of the House with immediate effect.

30. Uphaar fire tragedy (Sushil Ansal vs State Thr CBI) - March 2014

Split judgment couldn't reach a decision on sentencing.

August 2015: Eighteen years after 59 people were killed in a fire in Delhi's Uphaar cinema, the Supreme Court held that the prime accused did not necessarily need to go back to jail as they were fairly aged. The court further held that "ends of justice would meet" if the accused paid Rs 30 crore each as fine.

31. Nirbhaya case shook the nation - March 2014

State vs Ram Singh and Ors.

Judiciary spurred into action and laws were strengthened for sex offenders.

Four out of the five accused in the horrific gang-rape case of Nirbhaya were convicted and given the death sentence. The case also resulted in the introduction of the Criminal Law (Amendment) Act, 2013 which provides for the amendment of the definition of rape under Indian Penal Code, 1860; Code of Criminal Procedures, 1973; the Indian Evidence Act, 1872 and the Protection of Children from Sexual Offences Act, 2012.

32. Recognising the Third gender (National Legal Services Authority v Union of India) - April 2014

In a landmark judgment the Supreme Court in April, 2014 recognised transgender persons as a third gender and ordered the government to treat them as minorities and extend reservations in jobs, education and other amenities.

33. Section 66A struck down (Shreya Singhal v Union of India) - March 2015

Cracking down on "offensive" online content not easy.

Controversial section 66A of the Information Technology Act which allowed arrests for objectionable content posted on the internet was struck down as unconstitutional by the Supreme Court in March 2015.

34. Yakub Memon sentenced to death (Yakub Abdul Razak Memon V State of Maharashtra and Anr) - July 2015

No reprieve for the accused in 1993 Mumbai serial blasts.

Yakub Abdul Razak Memon was convicted and sentenced to execution by hanging in March 2015 for his involvement in the 1993 Bombay serial blasts. His conviction sparked a nationwide debate on capital punishment in India.

35. Dance bars functional again

Indian Hotel & Restaurant Association and Ors. Vs. State of Maharashtra and Ors

After a gap of two decades, dance bars open.

The Supreme Court in July 2013 passed a judgment directing the state government to reopen dance bars in Maharashtra which had earlier been banned under the Maharashtra Police Act. The resultant ban by the Bombay High Court was stayed.